



City of Haverhill

Massachusetts

Water and Wastewater Divisions

Date: September 17, 2026

To: The Honorable Melinda E. Barrett
Mayor of Haverhill

From: Robert E. Ward *REW*
DPW Director - Water/Wastewater

Subject: Proposed City Council Order to Amend § 250-22 through § 250-30 Water Use Restriction of the City Code

Attached is a City Council Order to amend § 250-22 through § 250-30 Water Use Restriction of the City Code by repealing and replacing the ordinance in its entirety. The revised ordinance was prepared by my office, in consultation with the City Solicitor's Office, and incorporates items discussed during the City Council Planning and Development Committee meeting on this ordinance. The new ordinance also includes updates based on the Massachusetts Water Management Act (M.G.L. c. 21G and implementing regulations, 310 CMR 36.00) and MassDEP permit requirements. A copy of the existing ordinance is attached for reference.

The new ordinance modernizes and strengthens the City's legal and regulatory framework for water conservation and drought management. The substantive updates to the ordinance are as follows:

- Alignment with MassDEP and Water Management Act requirements - The revised ordinance fully integrates state drought guidance, required nonessential water use restrictions, and notification protocols mandated under 310 CMR 22.15(8) and 310 CMR 36.07 throughout various sections of the ordinance.
- Clarified authority and applicability – A new § 250-23.1 of the ordinance now explicitly applies the restrictions to all water customers and all water users, including those drawing from private wells within City limits, ensuring consistent community-wide compliance.
- Updated definitions and expanded exemptions – The definitions included in § 250-24, and as expanded upon in § 250-26, have been updated to match state regulations, including revisions to “nonessential outdoor water use,” “automatic irrigation system,” and permitted exemptions for agriculture, certain commercial operations, and public facilities.
- Irrigation system requirements - A new § 250-24.1 requires soil moisture sensors, rain sensors, and flow sensors on all newly installed or repaired in-ground irrigation systems to reduce unnecessary outdoor water use.

- New baseline seasonal conservation standards - A new § 250-25 establishes standard seasonal outdoor water use limitations applicable annually from May 15 through September 30.
- Revised drought trigger levels and response actions - Trigger thresholds and associated restrictions have been updated in § 250-25.2 to comply with Water Management Act permit conditions, including new multi-level drought stages (Watch, Mild, Significant, Critical, Emergency).
- Suspension of deduct meter credits – A new § 250-25.2(C) suspends deduct-meter credits applicable to sewer bills for participating individuals and businesses during a Level 3 or Level 4 drought condition.
- Strengthened enforcement provisions - Penalties have been revised in § 250-29 to provide more effective enforcement, with increased fine amounts for repeat violations and provisions for termination of service in emergency conditions.

These revisions ensure that the City of Haverhill remains compliant with state law while better protecting public health, safety, and the long-term resiliency of the municipal water supply—particularly in light of increasingly frequent drought conditions. The updated ordinance reflects best practices recommended by MassDEP and aligns the City’s regulatory language with current water management requirements.

Pending your approval, the revised ordinance can be forwarded to the full City Council for consideration and adoption. As noted above, the Council must place the ordinance on file for ten days prior to final action.

Please let me know if you would like any further revisions or supporting documentation.

If you need additional information, please call or email.

Attachments

City Council Order
Current Ordinance

Cc: Christine Lindberg, Chief of Staff
Lisa Mead, City Solicitor